

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

TOYOTA DE PUERTO RICO CORP., *Complainant*

v.

PUERTO RICO PORTS AUTHORITY, CROWLEY PUERTO RICO
SERVICES, INC., AND OCEANIC GENERAL AGENCY, INC.,
Respondents.

DOCKET NO. 19-02

Served: June 17, 2020

BEFORE: Erin M. WIRTH, *Chief Administrative Law Judge.*

ORDER GRANTING JOINT REQUEST TO STAY PROCEEDING

On January 3, 2020, an order was issued staying this proceeding until a decision was issued by the First Circuit in the related *Dantzler* case and requiring the parties to file a joint status report within fifteen days of a decision being issued in the *Dantzler* case.

On May 1, 2020, the First Circuit issued a decision in the *Dantzler* case, finding that the plaintiffs failed to establish constitutional standing and that the Puerto Rico Port Authority was entitled to sovereign immunity in its performance of the inspection functions at issue. *Dantzler, Inc. v. Empresas Berrios Inventory & Operations, Inc.*, 958 F.3d 38, 50 (1st Cir. May 1, 2020).

On May 18, 2020, the parties filed their third joint status report (“JSR3”), requesting that this proceeding continue to be stayed until the decision in *Dantzler* becomes firm and final. JSR3 at 1. On May 28, 2020, an order was issued requiring an additional joint status report indicating whether a petition for rehearing had been filed in the *Dantzler* case and any other developments pertinent to this proceeding.

On June 15, 2020, the parties filed a joint status report (“JSR4”) reiterating their request to stay this proceeding until the First Circuit decision in *Dantzler* becomes firm and final. The parties attached a copy of the *Dantzler* petition for rehearing filed on May 29, 2020. JSR4 at 1.

Good cause having been stated, it is hereby **ORDERED** that this proceeding be stayed until a final decision is issued by the First Circuit in the related *Dantzler* case. Within fifteen days of a decision being issued by the First Circuit in the *Dantzler* case, the parties must file a joint status report including a copy of the decision and a proposed schedule.


Erin M. Wirth
Chief Administrative Law Judge